Sumit Mehta vs State Of Nct Of Delhi on 18 December, 2012

Author: P.K. Bhasin

Bench: P.K.Bhasin

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*       IN THE HIGH COURT OF DELHI AT NEW DELHI
%                          BAIL APPLN. NO. 1479/2012
+                              Date of Decision: 18th December, 2012

#      Sumit Mehta                                        ....Petitioner
 !                                  Through: Mr. Aman Lekhi, Sr.
                                    Advocate with Mr. Ankur Garg &
                                    Mr. Nitin Bhatia, Advocates.

                                    Versus

$      State of NCT of Delhi                             ....Respondent
!                                   Through: Mr. M.N. Dudeja, APP
                                    for the State. Mr. Vikas Pahwa, Sr.
                                    Advocate with Mr. Pranyab Pathak,
                                    Advocates for the complainant


       CORAM:
*      HON'BLE MR. JUSTICE P.K.BHASIN

                                ORDER
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The petitioner accused is claiming anticipatory bail in a case registered against him vide FIR no. 104/2012 on 22.08.2012 for the offences punishable under Sections 420/467/468/471 IPC on the basis of the complaint made against him by the complainant.

2. The case has been registered against four persons including the petitioner herein at the behest of the complainant Harman Jaspal on the allegations that in the year 2003 the complainant and the accused petitioner had agreed to invest money together for running a petrol pump in partnership with co-accused Kirpal Singh, who was already running the same in the name of M/s Akaash Auto Center. The complainant claimed to have invested a sum of two crores of rupees in the said Firm in the year 2003. As per the further allegations Kirpal Singh had at that time executed some documents showing that he was authorising the complainant and petitioner to run the petrol pump. However, formally the names of the petitioner and the complainant could not be entered in the records of Indian Oil Corporation, which had allotted the petrol pump to the said Firm of accused Kirpal Singh, since at that time that was not permissible under the guidelines of Indian Oil Corporation. However, in the year 2009 introduction of new partners for the running of existing petrol pumps was made permissible and as per the allegations in the FIR the petitioner took all documents executed by Kirpal Singh in the year 2003 from the complainant for getting their names entered in the records of Indian Oil Corporation as the partners to the extent of 25%. Balance 75%

interest in the petrol pump was to remain with Kirpal Singh. However, the petitioner conspired with Kirpal Singh and got fresh documents executed from him and by virtue of those fabricated documents he exclusively became 25% partner in the petrol pump business and the complainant was completely removed from the scene and he was not even returned back the investment made by him. That led to the lodging of a complaint at Naib Sarai police station by the complainant but no FIR was registered and then the complainant approached the EOW Cell which however registered an FIR on 22.08.2012 for the already noted offences. Apprehending his arrest the petitioner filed the present application for anticipatory bail after failing to get that relief from the Sessions Court.

3. Learned senior counsel for the petitioner had submitted that a false case has been got registered by the complainant with the Crime Branch and that is evident from the fact that even though the documents were allegedly executed by Kirpal Singh alone and not by the petitioner and the complainant in the year 2003 the FIR was got registered after many years and further that the local police had at one stage closed the complaint of the complainant and then by increasing the investment amount the complainant had approached the Crime Branch in the year 2012 even though he came to know about the alleged fraud in the year 2009 itself when accused Kirpal Singh made the petitioner only as his partner in the petrol pump business. It was also submitted that no money admittedly was paid to the petitioner by the complainant and according to his own case the money was paid to Kirpal Singh's Firm and further that even the amount of investment was not certain inasmuch as different amounts were being claimed by the police to be his investment. At one stage it was being claimed that the amount invested was one crore and at another stage it was being claimed that it was more than two crores and inflated amounts were being claimed by the complainant so that he could approach the EOW Cell which investigates cases involving more than two crores and where he had influence. It was also contended that if Kirpal Singh had got the name of the petitioner entered in the records of Indian Oil Corporation as his partner in the petrol pump to the extent of 25% the petitioner cannot be blamed for that. Another submission made was the petitioner's father, who is also an accused and it was he only who had allegedly got introduced the petitioner and the complainant to Kirpal Singh in the year 2003 had been granted anticipatory bail by the Sessions Court itself while rejecting petitioner's application.

4. Opposing this bail application the learned Additional Public Prosecutor and the learned senior counsel for the complainant had submitted that arrest of the petitioner is necessary for his custodial interrogation for recovery of the original documents which accused Kirpal Singh had executed in favour of the petitioner and the complainant in the year 2003 as also for the recovery of the money invested by the complainant for running the petrol pump which was during those days being run by accused Kirpal Singh's Firm. It was however submitted that major portion of the complainant's investment was in cash and source of that investment was also being investigated.

5. The photocopies of some documents recovered by the police show that the same were signed only by Kirpal Singh in the year 2003 and there is no document showing that the petitioner and complainant had entered into any kind of understanding with each other for a joint investment in Kirpal Singh's petrol pump. Learned APP did not dispute that no money was paid to the petitioner by the complainant though it was submitted that money was received by Kirpal Singh and his co-accused partner(who has now expired) and it was paid to them on the misrepresentation of the

petitioner and his co-accused father.

6. Considering all the facts and the circumstances including the fact that co-accused father of the petitioner has already been granted anticipatory bail, I am of the view that the petitioner can also be granted anticipatory bail but subject to his getting a fixed deposit made for a period of six months, to begin with, in any nationalized bank for the amount of Rs.1,00,00,000/-(one crore only) in the name of the complainant and to be kept with the Investigating Officer, payment whereof shall be subject to the decision of the concerned Magistrate after completion of the investigation. The FDR shall be delivered to the investigating officer within two weeks and upon this condition being complied with he shall be released on bail in the event of his arrest subject to his furnishing a personal bond in the sum of Rs. 50,000/- with one surety of the like amount to the satisfaction of the arresting officer. The FDR shall be got made and handed over to the Investigating Officer within fifteen days and the same shall be got renewed also from time to time.

P.K. BHASIN, J DECEMBER 18, 2012